

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 12**

**Honorable Nahal Iravani-Sani, Presiding**

Courtroom Clerk, Ryan Nguyen  
191 North First Street, San Jose, CA 95113  
Telephone: (408) 882-2230

**DATE: 08/12/2026 TIME: 9:00 A.M. and 9:01 A.M.**

|             |            |                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                  |
|-------------|------------|--------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>9:01</b> | 26CV489443 | Jeff Suarez<br>v.<br>Angelina Mendez | <p>MOTION TO WITHDRAW AS ATTORNEY</p> <p>Attorney Christopher Goodroe and Wilshire Law Firm, attorneys for Plaintiff move under Code of Civil Procedure 284(2) for an Order to Be Relieved as Counsel. No Opposition received.</p> <p>As the Motion complies with applicable law and is duly served, the Motion is hereby GRANTED.</p> <p>The Court will sign the Proposed Order that has already been prepared and e-filed.</p> |
|             |            |                                      |                                                                                                                                                                                                                                                                                                                                                                                                                                  |

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**Calendar Line 1**

**Case Name:** *Xiufeng Xie v. Jane Doe; Simorphy Design and Investment et al.*

**Case No.:** 23CV413944

**MOTION TO COMPEL****1. PROCEDURAL BACKGROUND**

On December 23, 2025, Defendant and Cross-Complainant Jane Doe (“Defendant”) served Plaintiff and Cross-Defendant Xiufeng Xie (“Plaintiff”) with Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admission, Set One.

After Plaintiff was granted an extension, Plaintiff served responses on February 13, 2026. The parties thereafter engaged in meet-and-confer efforts from February 17 through March 12, 2026, including written correspondence and a telephone conference. The parties agreed in writing to extend the deadline for Defendant’s motion to compel to April 30, 2026. Plaintiff subsequently served amended responses to certain Requests for Production on April 9, 2026.

Defendant filed the present motion on April 30, 2026. Plaintiff filed an opposition on July 30, 2026. Defendant filed a reply on July 30, 2026 and another reply on August 5, 2026. The court declines to consider the supplemental reply. The applicable briefing schedule does not provide for a second reply as a matter of right, and Defendant did not obtain leave to file additional briefing. The matter is now before the Court.

**2. APPLICABLE LAW**

A party may move for an order compelling further responses to interrogatories when an answer is evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).) A party may move for further responses to a demand for inspection when a statement of compliance is incomplete, a representation of inability to comply is inadequate or evasive, or an objection is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) A party may move for a further response to a request for admission when an answer is evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

Discovery responses must be as complete and straightforward as the information reasonably available to the responding party permits. (Code Civ. Proc., §§ 2030.220, subd. (a), 2031.210, 2033.220.) Evasive or incomplete responses are treated as failures to respond. (See Code Civ. Proc., §§ 2030.220, subd. (a), 2033.220.)

A motion to compel further responses must also comply with the applicable procedural requirements. Among other things, California Rules of Court, rule 3.1345 requires a separate statement for motions to compel further responses to interrogatories, inspection demands, and requests for admission. The separate statement must be full and complete and must provide all information necessary to understand each disputed discovery request and response without requiring the Court to consult another document. It must include the text of the request, the text of each response or objection, and the factual and legal reasons for compelling a further response as to each matter in dispute. Material may not be incorporated by reference. (Cal.